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Executive Order.

By virtue of the authority vested in me by the provisions of the Act of Congress approved August 21, 1916, entitled "An Act extending certain privileges of Canal employees to other officials on the Canal Zone, and authorizing the President to make rules and regulations affecting the health, sanitation, quarantine, taxation, public roads, self-propelled vehicles and police powers on the Canal Zone, and for other purposes, including provision as to certain fees, money orders and interest deposits", I do hereby establish the following Executive Order for the Canal Zone:

Sec. 1. The Governor of The Panama Canal is hereby empowered to exclude or to cause to be excluded the following classes of persons from the Canal Zone: Idiots, imbeciles, feeble minded persons, the insane, persons who have been insane within five years previous to their attempted entry into the Canal Zone, epileptics, paupers, criminals, professional beggars, gypsies, persons of notoriously bad character, persons whose presence would be a menace to the public health or welfare of the Canal Zone, or who would be liable to become a public charge, or who may be suffering from a loathsome or dangerous contagious disease, those who have been convicted of felony, anarchists, those whose purpose it is to incite insurrection, and others whose presence, in the judgment of the Governor, would tend to create public disorder or in any manner impede the prosecution of the work of opening the Canal or its maintenance, operation, sanitation, and protection; and the Governor may expel from the Canal Zone, and deport therefrom, any person convicted of a criminal offense of the grade of felony, or whose presence, in the judgment of the Governor, would tend to create public disorder or in any manner impede the prosecution of the work of opening the Canal or its maintenance, operation, sanitation, or protection.

The cost of excluding or deporting persons hereunder shall be a charge against the person or interest responsible for the entry of the undesirable person into the Canal Zone, the collection thereof to be enforced in the manner hereinafter provided. In cases of deportation in which no person or interest can be held responsible for the cost hereunder, the cost of such deportation shall be paid from the appropriations made for the maintenance, operation, sanitation and protection of the Canal.

Sec. 2. Any person falling within any one of the excluded classes mentioned in the foregoing section, who desires to cross the Canal Zone in order to reach his final destination, may be allowed to effect such transit in the custody of a representative of the Panama Canal authorities, provided the owner, or master of, or person, or interest controlling the vessel, upon which such person arrives at a port in the Canal Zone will agree, in writing, that if such person is rejected at his final destination and returned to the Canal Zone, his deportation therefrom shall be at the expense of the owner or interest controlling the vessel, in which case the cost of the deportation shall be enforced against the owner or interest in the manner prescribed by the law of Congress and the provisions of this Executive Order.

Sec. 3. The owner or interest controlling a vessel bringing a person to the Canal Zone, who is subject to exclusion under this order, shall carry such

excluded person to his port of embarkation, when required to do so by the Panama Canal authorities, and, when so required by the Canal authorities, return a certificate to said authorities, from the proper officials of the port of embarkation, stating that said excluded person had been landed at said port.

Sec. 4. No member of a crew of any vessel shall be paid off and discharged at any port of the Canal Zone without the consent of the Panama Canal authorities, unless it be shown by the ship's articles that said member of the crew signed said articles at a port in the Canal Zone.

Sec. 5. It shall be the duty of the owners, officers and agents of any vessel bringing persons excluded hereunder to the Canal Zone to adopt due precaution to prevent the landing of any such persons at any time or place other than that designated by the proper officials of The Panama Canal, and any such owner, officer, agent or person in charge of such vessel, who shall land or permit to land, any such excluded person at any time or place other than that designated by the authorities of The Panama Canal, shall be punished as hereinafter provided.

Sec. 6. The master or person in charge of a vessel bringing any person subject to exclusion hereunder to the Canal Zone shall be required to receive such person on board, when his or her deportation has been ordered, at any time previous to the advertised date of sailing of the said vessel, and if the master is absent at the time the said person is delivered on board, the officer or person in charge of the vessel shall receive such excluded person.

Sec. 7. Any excluded person awaiting deportation, or any person held for the determination of his right of entry into the Canal Zone, may be detained at the Canal Zone police station or other place designated by the detaining officer, when such action is deemed necessary by such officer.

Sec. 8. All expense incident to the detention, maintenance, transportation (including transportation of baggage) of any excluded person, or of any person held for the determination of his right of entry into the Canal Zone, as well as the cost of deportation of such excluded person, shall be charged to the owner of the vessel bringing such excluded person to the Canal Zone, or to the interest controlling such vessel, except where otherwise expressly provided by law.

Sec. 9. Clearances may be withheld from vessels until all expenses authorized by this order against the owner of or interest controlling such vessels have been duly paid to the Panama Canal authorities.

Sec. 10. Quarantine officers are hereby authorized to administer oaths, and for that purpose they shall have the powers of a notary public.

Sec. 11. The Governor of The Panama Canal is hereby authorized to make rules and regulations to carry out the foregoing provisions of this order, not inconsistent with its terms.

Sec. 12. The penalty for each violation of any of the foregoing provisions of this order shall be a fine not to exceed $500.00 or imprisonment not to exceed one year, or both such fine and imprisonment, at the discretion of the court, in conformity with the above mentioned Act of Congress approved August 21, 1916.

Sec. 13. The quarantine rules and regulations for the Canal Zone and the harbors of the cities of Panama and Colon, Republic of Panama, contained in the President's Executive Order dated April 15, 1913, (No. 1761) as amended by the Executive Orders dated August 14, 1914, (No. 2020) and January 11, 1915, (No. 2118), are hereby re-enacted, and shall become

effective on and after the date of this Executive Order, and any violation of said quarantine rules and regulations shall be punished by a fine not to exceed $500.00 or by imprisonment in jail not to exceed ninety days, or by both such fine and imprisonment in the court's discretion, in conformity with the above mentioned Act of Congress of August 21, 1916.

Sec. 14. All laws and orders in conflict with this order are hereby repealed.

Sec. 15. This order shall take effect from and after this date.

WOODROW WILSON

THE WHITE HOUSE,
6 February, 1917.

[No. 2527.]